

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 22-22

U SHIPPERS GROUP INC.,

COMPLAINANT,

v.

MAERSK A/S dba MAERSK,

RESPONDENT.

**JOINT REPORT OF PARTIES AND
PROPOSED SCHEDULING AND DISCOVERY ORDER**

Pursuant to Federal Rule of Civil Procedure 26(f) and FMC Rules § 502.141(b), (h), the parties held initial meetings and exchanges on October 11th with attorney Brendan Collins representing U Shippers Group, Inc. (“U Shippers”) and Wayne Rohde representing Maersk AS dba Maersk (“Maersk”) participating.

SCHEDULING AND DISCOVERY PLANS WERE DISCUSSED AND AGREED TO AS FOLLOWS:

1. The parties served their Initial Disclosures on October 3, 2022.
2. The parties discussed that the subjects on which discovery might be needed from the respective parties. This included communications regarding the Service Contract between the parties and communications regarding potential future Service Contracts.
3. The parties consulted with CADRs on October 11, 2022. The parties discussed the feasibility of seeking mediation or other alternative dispute resolution process offered by the Federal Maritime Commission as an available process for seeking resolution of the issues of this proceeding. It was determined that this was not a viable option at this juncture.
4. Initial interrogatories, requests for production, and requests for admission, pursuant to Federal Rules of Civil Procedure 33 and 34 shall be served on opposing parties by

November 2, 2022.

5. Deadline for production of documents, and any written responses and objections in response to initial discovery requests is December 2, 2022.
6. The parties **CERTIFY** that they have discussed, in particular, the proportionality of discovery, the burden and expense associated with discovery, and the discovery of electronically stored information (ESI). Respondent proposed an ESI protocol, but Complainant was of the view that such a protocol is not needed at this time. The parties may revisit the issue after initial discovery requests are issued.
7. The deadline for identifying experts and providing expert reports will be January 19, 2023. Rebuttal expert reports, if any, due February 2, 2023.
8. Discovery shall be completed by February 23, 2023 (no later than 150 days after the service of the respondent's answer to the complaint. FMC R. §502.141(g). Any written interrogatories or request for production served after the date of the Scheduling and Discovery Order shall be served by a date that allows the served parties the full 30 days as provided by the Federal Rules of Civil Procedure in which to answer or produce by the discovery cut-off date.
9. All dispositive motions shall be filed by April 7, 2023.

DATED: November 2, 2022

Respectfully Submitted:

/s/ Efrem Schwalb

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